

Visit report: HPY2.01_HemsbyPrimary_DPE_Visit.09.10.19 **Time:** 09.30

Staff member: DPE: Stuart Lee. **School:** Mrs Lisa Beales, Deputy Headteacher

The meeting was completed with Lisa Beales deputy head. Martin White is currently the interim headteacher. The school has had 3 previous visits and two changes in headship since the first visit. It was agreed the aim of the visit, due to the changing circumstances, was to check current GDPR paperwork and identify if there were any gaps and additional actions to complete. Priorities are detailed below with the full visit report and comments following:

Priorities:

Governance (priority):

- Add GDPR as an item at governors meetings and determine which governor will have GDPR responsibilities. If not already trained, it is good practice for the assigned governor to complete DPE GDPR e-learning training.

Policies (priority):

Upload the following policies/statement and display on the school website (asap). SL updated (attached):

- GDPR policy
- GDPR privacy statement

Procedures (priority)

- Disseminate the **Data breach procedure** to staff (can be stored on the network or website) and ensure all staff understand what a data breach is and how to report this;
- Subject Access Request (SAR) Procedure – ensure key staff are familiar with the procedure and how to respond to a SAR.

Training (asap)

- Complete an awareness session with support staff who have not attended any training, or who may not be able to complete e-learning training i.e. Caretaker.

Item	Audit, DPE website and training	Governance, comments and previous	Follow on actions/comments
1	Audit walk (including audits)	comments previous	Actions from previous audit walks had either been completed or were in the process of being completed. A mini walk was completed during the visit and it was ascertained that care plans, risk assessments medical data displayed on the notice board (covered) in the staffroom would be better placed in files/folders and stored appropriately. The school also makes use of electronic systems to proactively keep staff updated of such data.
2	Governance		Add GDPR as an item at governors meetings and determine which governor will have GDPR responsibilities. If not already trained, it is good practice for the assigned governor to complete DPE GDPR e-learning training.

3	DPE website and best practice areas	DPE best practice areas, compliance checklists, SLAs and compliance manager discussed/demonstrated with the school. Recommended the school review the compliance checklist initially. The checklists can be used to record and show GDPR progress to governors and support consultants during visits.
4	Compliance Manager	Demonstrated how reports can be uploaded and documentation read/reviewed by staff: DPE/Tools/Compliance manager. All audit reports will now be uploaded to Compliance Manager. The school will receive a notification once a report/document has been uploaded. The school can use Compliance Manager for other key documentation i.e. Safeguarding.
5	Staff training	DPE has e-learning training which has been completed by the majority of staff. ADVISORY/ACTION POINT: The school should consider the caretaker and support staff yet to complete training attending a GDPR awareness session.
	Policy/procedure	Follow on actions/comments
1	ICO registration	School was already registered but did not have DPE as the named DPO. SL supported the school with sending an email to the ICO to register DPE as the named DPO.
2	GDPR data protection policy	Completed (SL actioned) ACTION POINT: Remove Stuart Lee as the named DPO and replace with: Data Protection Education Ltd
3	GDPR privacy statement	Completed (SL actioned): Remove: Stuart Lee as the named DPO and replace with: Data Protection Education Ltd SL updated the Privacy statement and amended: <u>Who we share pupil data with</u> to include third parties as an appendix.
4	Breach procedure	ACTION POINT: School to revisit and check location of the data breach procedure and ensure all staff understand the data breach procedure and that breaches/incidents are logged. Explanation provided for new heading on Data Breach notification – Breaches received
5	SAR procedure and log	ACTION POINT: School to revisit to ensure key staff understand the procedure. DPE online SAR log can be also used by the school.
6	Additional Policy documentation	Additional advisory DPE documentation to support compliance and best practice that can be considered. Additional information can be obtained from the best practice and resource areas of the DPE website: • Records Management Policy • Information Classification guidance • FOI Policy (school to check whether it has a publication scheme: https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf) • Clear Desk Policy • Work away from school policy
7	Retention schedule and safe destruction of data	Governor hub annual review of school data and safe data destruction checklist and IRMS toolkit documentation discussed with the school. School can continue to check and record against data stored in school. The DPE record of processing tool will also include lawful basis for processing, risk and data retention. Guidance can be obtained from the DfE and IRMS toolkits:

		https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5.1)
8	DPIA	Discussed when one would be needed i.e. CPOMS. DPE will be providing additional documentation on the Knowledge Bank. Risk management is also incorporated within the Record of Processing tool.
Item	Data mapping	Follow on actions/comments
1	Data mapping to support the Record of Processing (RoP) tool	As the DPE Record of Processing tool is being launched shortly, the school will wait for this to start data mapping and for record management. DPE have provided around 100 generic processes that can be mapped for each school with appropriate sub-processors. DPE will be completing webinars and remote sessions from September 2019 to support schools with the process.
		IT Provider details: MIS Provider: Pupil Asset
Item	Technical measures	Follow on actions/comments
1	Website	ADVISORY: School to complete checks and cleanse to remove any old photos of leavers from the school website.
2	Servers and back ups	Server room is secure. School to still complete a full data cleanse.
3	Cyber essentials questionnaire	ACTION POINT: Recommend IT provider completes.
4	Laptops	Are all school laptops encrypted? ACTION POINT: School to check with IT provider encryption of laptops.
5	iPad security and Tapestry	School was not sure of the current system. SL mentioned that this is increasingly becoming an issue with schools reporting iPads missing/stolen, with student photos and videos on them. ACTION POINT: School to check and review current system.